

Ram Chandra Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 March 2021 · Writ-C No. 8294 of 2021 · **Writ disposed; petitioner relegated to CGRF under clause 7.10(ii); recovery made subject to the Forum's decision.**

HEADNOTE

Without entering the merits, a writ challenging a demand notice and a commercial-use notice, and complaining of non-consideration of a load-enhancement application, was disposed of by relegating the consumer to the Consumer Grievance Redressal Forum under clause 7.10(ii) of the U.P. Electricity Supply Code, 2005. Recovery proceedings were made subject to the Forum's fresh decision.

FACTUAL SUMMARY

Ram Chandra Yadav, a consumer with a 1 kW domestic connection, challenged a notice dated 12 October 2020 alleging commercial use of that connection and a demand notice dated 30 December 2020. He also complained that the department had not considered his application to enhance load from 1 kW to 2 kW. The two notices and the untreated load-enhancement request were the subject of the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(ii)

cgrf-relegation-load-enhancement-and-demand

HOLDING

Without entering the merits, the writ was disposed of by relegating the petitioner to the Consumer Grievance Redressal Forum under clause 7.10(ii) of the U.P. Electricity Supply Code, 2005. The Court noted that clause 7.10 channels matters in clauses 7.7.1 to 7.7.5, including load reduction/enhancement under clause 7.7.4 (licensee to decide such applications within 30 days), to the Forum constituted under the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003. If the petitioner approached the Forum within three weeks with a copy of the order, the Forum was to consider all grievances in accordance with law; recovery proceedings were to remain subject to the Forum's fresh decision. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10 Writ challenging a demand notice, a commercial-use notice, and non-consideration of a load-enhancement application was disposed of without merits by relegating the consumer to the CGRF under clause 7.10(ii). ¶ 1

cgrf-7.10-alternate-remedy Clauses 7.7.1 to 7.7.5, including load enhancement under clause 7.7.4, were treated as Forum matters under clause 7.10; recovery was left subject to the Forum's decision. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 Petitioner directed to approach the CGRF within three weeks; the Forum was to consider all grievances in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE DATED 30.12.2020, THE COMMERCIAL-USE NOTICE DATED 12.10.2020, AND THE UNTREATED LOAD-ENHANCEMENT APPLICATION FROM 1 KW TO 2 KW

Court expressly declined to enter the merits and left all grievances to the CGRF. ¶ 1